

26STCV13131 26STCV13131

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 26STCV13131 Hearing Date: September 23, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

23, 2026 TRIAL

DATE: N/A

CASE: Katelyn Waco v. Jon's Towing Inc.

CASE NO.: 26STCV13131

APPLICATION FOR DEFAULT JUDGMENT

I. INTRODUCTION

On April 23, 2026, Plaintiff, Katelyn Waco, filed this action against Defendant, Jon's Towing Inc., and Does 1 through 10 for pregnancy discrimination, sex discrimination, wrongful termination in violation of public policy, intrusion into private affairs, and constructive invasion of privacy.

On May 4, 2026, Defendant was served with the summons and complaint by substituted service.

On July 13, 2026, default was entered against Defendant.

On August 7, 2026, Does 1 through 10 were dismissed. On the same day,

Plaintiff filed a request for entry of default judgment against Defendant in the total sum of \$492,225.49, consisting of \$83,725.49 in special damages, \$300,000 in general damages, and \$108,500 in attorney fees.

On August 25, 2026, the court denied the application without prejudice because (1) there was no proof of service of the statement of damages; (2) Plaintiff did not submit any evidence to support the damages sought; (3) Plaintiff did not submit any proof of Defendant's financial condition to support a punitive damages award; (4) attorney's fees were not calculated pursuant to the default schedule provided under LASC Local Rule 3.214.

On September 21, 2026, Plaintiff filed another request for default judgment. Plaintiff now requests entry of default judgment against Defendant in the total sum of \$389,452.74, consisting of \$83,725.49 in special damages, \$300,000 in general damages, and \$5,727.25 in attorney fees.

II. DISCUSSION

After review, the court cannot approve the application for the following reasons:

1.

Plaintiff's

special damages claim is comprised, in part, of \$38,674.08 in loss of earnings, \$37,440.00 in loss of future earning capacity, and \$7,611.41 in lost benefits. Plaintiff merely states that she lost her income of \$18.00 and that she suffered the foregoing economic losses. This showing is insufficient to establish she suffered economic losses in the foregoing amounts. For instance, there is no calculation or explanation provided to show how the stated figures represent Plaintiff's special damages. This is especially true of Plaintiff's alleged loss of future earning capacity and lost benefits. Plaintiff must provide additional explanation or proof.

2.

Plaintiff's

general damages claim is comprised of \$125,000 for pain, suffering, and inconvenience, \$125,000 for emotional distress, and \$50,000 for invasion of privacy. Plaintiff does not provide sufficient evidence to prove up her general damages claim. Further, the court

is unable to ascertain the appropriate general damages award in the absence of proof to support the special damages claim.

3.

The

general damages requested make clear that emotional distress is at the heart of the action. Therefore, Plaintiff should

have served Defendant with a statement of damages prior to the entry of default. (See Schwab v. Rondel Homes, Inc. (1991) 53 Cal.3d 428, 432.)

Here, Plaintiff purportedly served the statement of damages on September 21, 2026. Having failed to serve the statement of damages prior to the entry of default, the default was entered in error and must be vacated. (Sass v. Cohen (2020) 10 Cal.5th 861, 870-71.)

4.

The

statement of damages was purportedly served by mailing and acknowledgement of receipt. However, the completed acknowledgement of receipt is not attached to the statement of damages. Effectively, there is no proof that the statement was served on Defendant.

III. CONCLUSION

Based on the foregoing, Plaintiff's application for entry of default judgment is DENIED WITHOUT PREJUDICE. The default entered against Defendant on July 13, 2026 is VACATED. Plaintiff is ordered to seek entry of default and to file a default judgment package addressing the defects noted herein forthwith. If no default or a default judgment is entered before the next court date, Plaintiff must file a declaration explaining why no later than five court days before the next court date.

Dated: September 23, 2026

Brock T. Hammond

Judge of the Superior Court